

vicarious liability is alleged so the demurrer should be overruled. This position lacks merit. The demurrer to the sixth cause of action is sustained.

D. CRLA (Seventh C/A, wrongly titled as a UCL claim)

The CSCDA demurs to the seventh cause of action for violation of the Consumer Legal Remedies Act (“CLRA”). Though the demurer does not cite any authority specifically holding that the CRLA does not apply to public entities, it reasons (and cites authority for the position) that, absent specific statutory language imposing liability, a statutory scheme does not, by default impose liability on government entities. Plaintiff fails to adequately refute the principle. Accordingly, the demurrer to the seventh cause of action is sustained.

**3. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.**

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This case management conference trails the hearings on the demurrers and motions to strike for Lines 8-11. Counsel are ordered to appear via Zoom for the CMC, unless Lines 8-11 are uncontested. If Lines 8-10 are uncontested, then the CMC shall be continued to June 5, 2026 at 8:30 a.m. in Dept. 16.

Law & Motion

**4. 9:00 AM CASE NUMBER: C22-01601
CASE NAME: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY
COMPANY VS. MATT DELIMA**

***HEARING ON MOTION FOR DISCOVERY COMPEL PRODUCTION OF DOCUMENTS OF DEFENDANT
KNM CLAYTON, LLC AND FOR MONETARY SANCTIONS AGAINST DEFENDANT KNM CLAYTON, LLC IN
THE AMOUNT OF \$885.00**

FILED BY: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Summary

Plaintiff and Cross-Defendant Clayton Valley Shopping Center LLC (“Plaintiff”) Motion to Compel Production of Documents from Defendant and Cross-Complainant KNM Clayton LLC (“Defendant” or “KNM”) dba “Kick N Mule” and for sanctions in the amount of \$885.00 is **granted**.

Background

In this case, the underlying action arises out of a commercial lease between the parties. Plaintiff sued for breach of the lease and guaranty agreements when the Defendants allegedly breached said agreements by abandoning the premises and by failing to pay the charges due thereunder. The Defendants filed a cross-complaint alleging that the plaintiff breached the lease which caused them damage.

Plaintiff’s moving papers claim that Plaintiff served deposition notices to Defendant KNM and Defendant Matt Delima and Jason Haugen for March 24-26, 2025. The deposition notice was